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Department of the
District of Columbia
Office of Tax
and Revenue
Recorder of Deeds
1101 4th Street, SW
Washington, DC 20024
Phone (202) 727-5374

REVOCABLE TRANSFER-ON-DEATH DEED

NOTICE TO OWNER

You should carefully read all information on this form. You May Want to Consult a Lawyer Before Using This Form. This form must be recorded before your death, or it will not be effective.

IDENTIFYING INFORMATION

Owner or Owners Making This Deed:

_____ Printed name	_____ Mailing address
_____ Printed name	_____ Mailing address

Legal description of the property, including square, suffix and lot number:

PRIMARY BENEFICIARY

I designate the following beneficiary if the beneficiary survives me.

_____ Printed name	_____ Mailing address, if available
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Upon recording return to: **ALTERNATE BENEFICIARY – Optional**

If my primary beneficiary does not survive me, I designate the following alternate beneficiary if that beneficiary survives me.

_____ Printed name	_____ Mailing address, if available
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TRANSFER ON DEATH

At my death, I transfer my interest in the described property to the beneficiaries as designated above.

Before my death, I have the right to revoke this deed.

SIGNATURE OF OWNER OR OWNERS MAKING THIS DEED

____ [(SEAL)] _____
Signature Date

____ [(SEAL)] _____
Signature Date

ACKNOWLEDGMENT

DISTRICT OF COLUMBIA

CITY OF WASHINGTON

STATE OF: _____)

COUNTY OF: _____) ss:

I, the undersigned, a Notary Public in and for the jurisdiction aforesaid, do hereby certify that _____ and _____ personally appeared before me and being known to me as the person(s) whose name(s) is/are subscribed to the within instrument and did acknowledge that s/he/they executed the same for the purposes therein contained this ____ day of ____, 20__.

(SEAL)

Notary Public

My Commission Expires: _____

COMMON QUESTIONS ABOUT THE USE OF THIS FORM

--What does the Transfer on Death (TOD) deed do?

When you die, this deed transfers the described property, subject to any liens or mortgages (or other encumbrances) on the property at your death. Probate is not required. The TOD deed has no effect until you die. You can revoke it at any time. You are also free to transfer the property to someone else during your lifetime. If you do not own any interest in the property when you die, this deed will have no effect.

--How do I make a TOD deed?

Complete this form. Have it acknowledged before a notary public or other individual authorized by law to take acknowledgments. The form has no effect unless it is acknowledged and recorded before your death.

--Is the "legal description" of the property necessary?

Yes.

--How do I find the "legal description" of the property?

This information may be on the deed you received when you became an owner of the property. This information may also be available in the Office of the Recorder of Deeds. If you are not absolutely sure, consult a lawyer.

--Can I change my mind before I record the TOD deed?

Yes. If you have not yet recorded the deed and want to change your mind, simply tear up or otherwise destroy the deed.

--How do I "record" the TOD deed?

Take the completed and acknowledged form to the Office of the Recorder of Deeds. Follow the instructions given by the Recorder of Deeds to make the form part of the official property records.

--Can I later revoke the TOD deed if I change my mind?

Yes. You can revoke the TOD deed. No one, including the beneficiaries, can prevent you from revoking the deed.

--How do I revoke the TOD deed after it is recorded?

There are three ways to revoke a recorded TOD deed: (1) Complete and acknowledge a revocation form, and record it the Office of the Recorder of Deeds. (2) Complete and acknowledge a new TOD deed that disposes of the same property, and record it in the Office of the Recorder of Deeds. (3) Transfer the property to someone else during your lifetime by a recorded deed that expressly revokes the TOD deed. You may not revoke the TOD deed by will.

--I am being pressured to complete this form. What should I do?

Do not complete this form under pressure. Seek help from a trusted family member, friend, or lawyer.

--Do I need to tell the beneficiaries about the TOD deed?

No, but it is recommended. Secrecy can cause later complications and might make it easier for others to commit fraud.

--I have other questions about this form. What should I do?

This form is designed to fit some but not all situations. If you have other questions, you are encouraged to consult a lawyer.